Re: Second Follow-Up and Notice to Copied Offices — November 7 Records Request — ODC File Nos. 25-147 and 26-145

From Elvis Nuno [redacted]

To Pam Bucy [redacted] Sheena Broadwater [redacted]

CC JUD Commission on Practice <COP@mt.gov>, clerkofsupremecourt@mt.gov, contactdoj@mt.gov, FCS.CRT@usdoj.gov

Date Thursday, November 12th, 2026 at 17:55

Dear Ms. Bucy and Ms. Broadwater:

I am following up on my November 7, 2026 electronic records request concerning ODC File Nos. 25-147 and 26-145 and my November 11 request for acknowledgment and processing information. As of this email, I have received no acknowledgment, estimated production timeframe, fee estimate, responsive records, or written determination concerning that request.

Please acknowledge receipt and confirm whether ODC is processing it.

I have included additional offices for visibility and appropriate procedural routing because I have been unable to obtain even confirmation that this records request is being handled. Their inclusion is not a request to bypass the disciplinary-review process or to obtain confidential materials without authorization.

The outstanding request concerns existing records

This is not another request to reconsider the grievances, continue debating their merits, or prepare additional substantive analysis. It seeks copies of existing records, including my submissions, previously issued notices and correspondence, existing file inventories, and documentation identifying what was transmitted for review, together with other materials to the extent disclosure is authorized.

ODC's published FAQ, question 6, expressly states:

> "If you submit your grievance to ODC and thereafter request copies of the file, you will be charged a copy cost."

My request follows that described procedure. I have asked for an advance fee estimate and have not refused to pay properly assessed charges. If clarification, identity verification, payment arrangements, or another submission procedure is necessary, please identify that requirement by email so I can address it.

The original request expressly recognizes disciplinary confidentiality. It does not claim unrestricted access to every internal document or confidential deliberation. It asks ODC to distinguish among records that may be provided, records withheld under an identified authority, records not maintained by ODC, and records held elsewhere. If a restriction prevents disclosure of particular materials, please explain that restriction to the extent permitted and process the remaining disclosable portions.

Requested acknowledgment and processing determination

Please provide:

1. Confirmation that the November 7 request has been received and associated with both file numbers.
2. The name or office responsible for processing it.
3. An estimated production timeframe and any advance fee estimate.
4. Available disclosable records, on a rolling basis where practicable.
5. A written determination identifying any categories withheld and the applicable authority, to the extent that information may lawfully be supplied.
6. Custodian information and an electronic request route for responsive records maintained elsewhere.

I am not asking for immediate completion of every part of a potentially substantial production. I am asking for the straightforward administrative response necessary to establish whether the request is being processed and what steps, if any, I must take.

The records request is separate from the grievance dispositions

ODC's position that its dismissal correspondence adequately explained its decisions does not resolve this subsequent request for copies of existing records. Likewise, directing me toward further review does not answer the records request. Access to available records is particularly important when preparing an informed request for review.

Your November 5 email stated that I would receive no additional information regarding ODC's work and asked me to refrain from further correspondence. That email preceded my November 7 comprehensive records request. Please clarify whether ODC intends the November 5 instruction to encompass this separate request. If so, please state that expressly and identify the authority supporting a refusal to process it.

My November 7 request and November 11 follow-up are specific, procedural communications. They are not personal attacks or demands that ODC agree with my allegations. I expect a professional, issue-focused response addressing the request actually submitted.

Public confidence in oversight depends not only on the decisions an office announces, but also on how it administers its own procedures. An office can maintain its position on a grievance while acknowledging a records request, identifying lawful restrictions, and providing a reasonable processing estimate. Continued nonresponse leaves me unable to determine whether my request is pending, denied, misdirected, or not being acted upon.

Purpose of the copied recipients

I am copying the following offices for the limited purposes identified below:

- Commission on Practice — COP@mt.gov: The request includes records concerning Commission review and transmissions between ODC and the Commission. The Commission has been included in the existing correspondence.
- Clerk of the Montana Supreme Court — clerkofsupremecourt@mt.gov: For procedural routing and information about the filing procedure through which I may formally seek appropriate Court action if ODC does not process or issue a determination on this request.
- Montana Department of Justice, Office of the Attorney General — contactdoj@mt.gov: For additional visibility and identification of any assistance or referral available within the Department's authority.
- U.S. Department of Justice, Civil Rights Division, Federal Coordination and Compliance Section — FCS.CRT@usdoj.gov: For notice and any referral appropriate to the Section's responsibilities, without presuming that this records-access dispute falls within its jurisdiction.

I recognize that attorney discipline falls under the Montana Supreme Court's authority. I am not asking individual justices to decide this matter through informal email correspondence or asking state or federal DOJ officials to overturn the grievance dispositions. Copying these offices does not constitute a court filing or substitute for any required complaint or review procedure.

Requested response date

Please provide acknowledgment, a processing position, and an estimated timeframe by November 17, 2026. This is my requested response date, not an assertion that a fixed statutory deadline applies.

Please respond by email and provide records electronically, as requested in the original submission. If a particular record cannot be delivered electronically for a legal or security reason, please explain that reason by email and identify an available alternative.

This follow-up does not withdraw, replace, narrow, or waive my November 7 request or any separate review position. My immediate request remains straightforward: acknowledge the request, explain how it will be processed, provide the records that may lawfully be disclosed, and identify the basis for any withholding.

Sincerely,

Elvis Nuno
Grievant — ODC File Nos. 25-147 and 26-145

Sent with Proton Mail secure email.

On Wednesday, November 11th, 2026 at 08:00, Elvis Nuno [redacted] wrote:

> Dear Office of Disciplinary Counsel:
> On November 7th, I submitted the attached request for existing records concerning ODC File Nos. 25-147 and 26-145. I have not received any acknowledgment of this request.
> **This is a records request, *not* a request to reconsider the grievances or provide additional substantive reasoning.** It includes categories distinct from the dismissal explanations, including my submissions, previously issued correspondence and notices, and existing file inventories and transmission records.
> Please confirm by email whether ODC is processing the request and provide the anticipated timeframe and any fee estimate.
> ODC's published FAQ, question 6, expressly describes a grievant requesting copies of the file. Please identify the procedure applicable to my request and the categories ODC will provide under that procedure.
> If ODC denies any portion, please provide a written explanation identifying the affected category and applicable authority. Please process any remaining disclosable portions separately.
> Please respond upon receipt. This requested response date is not a representation that a fixed statutory deadline applies to, merely a request to ensure I have proper records required to draft informed requests by statutory deadlines I am subject to.
> Sincerely,
> Elvis Nuno
>
> Sent from Proton Mail for iOS.

-------- Original Message --------
On Saturday, 11/07/26 at 08:02 Elvis Nuno [redacted] wrote:

Dear Office of Disciplinary Counsel:

I am submitting this request in my personal capacity as the grievant for a complete electronic copy of all records concerning:

- ODC File No. 25-147
- ODC File No. 26-145

This request encompasses each matter from initial intake through its current status, including any investigation, dismissal, review, referral, reopening, closure, or transmission to the Commission on Practice or Montana Supreme Court.

Electronic communication and delivery are *essential* for records keeping and providing a durable audit trail.

Every request I have previously made by telephone or written letter has gone unanswered.

Please acknowledge this request by email, communicate about its processing by email, and deliver responsive records electronically.

Please do not direct me to make another telephone inquiry or send another paper letter as the means of obtaining a response.

1. Governing authorities and scope

I submit this request under the Montana Rules for Lawyer Disciplinary Enforcement ("MRLDE"), including:

- Rule 5(B)(10), requiring prompt notification when an investigation is to be initiated or, upon dismissal, a concise written statement of the facts and reasons for dismissal.
- Rule 10(C)(2), requiring written notice of dismissal, the reasons for the action, and notice of the grievant's right to request review.
- Rule 10(C)(1)(a)(2), authorizing ODC to provide the lawyer's response to the grievant and, where appropriate, request a reply.
- Rule 10(C)(3), providing for Review Panel review of a dismissal upon the record before it.
- Rule 14(A), requiring written notice of the opportunity to request Supreme Court review when a Review Panel affirms dismissal.
- Rules 5(B)(16) and 2(G)(7), addressing ODC's and the Commission's respective responsibilities for maintaining permanent disciplinary records.

For responsive information that is public rather than confidential, I also invoke Montana Constitution Article II, Section 9, and §§ 2-6-1003(1) and 2-6-1006, MCA, to the extent applicable. These authorities recognize access to public information, subject to applicable privacy and confidentiality restrictions. Section 2-6-1006(2), MCA, requires a public agency that is not an executive-branch agency to respond in a timely manner by making public information available or providing an estimated fulfillment time and applicable fees when the information cannot readily be identified and gathered.

I recognize the confidentiality restrictions of MRLDE Rule 20 and do not contend that public-records law automatically overrides them. Please evaluate separately: records and notices required to be provided to me as grievant; other records that may be disclosed to me; and records available to the public.

2. Complete grievance files and submitted materials

For each file number, please provide:

1. My original grievance and all accompanying exhibits, attachments, supporting documents, and evidence.
2. All supplemental submissions, amendments, corrections, replies, and additional evidence I submitted.
3. All correspondence I submitted concerning either matter, including attachments.
4. Existing records documenting receipt, intake, registration, assignment, classification, consolidation, separation, referral, or cross-referencing of the grievances and supporting materials.
5. Any existing file index, document inventory, attachment list, docket, case-event chronology, or comparable record identifying the contents and procedural history of each file.
6. Records identifying materials I submitted that were excluded, rejected, returned, deemed unreadable, or otherwise not considered, together with any existing explanation for that treatment.

These requests concern records maintained in connection with ODC's intake and processing functions under MRLDE Rules 10(A)–(C) and its record-maintenance responsibilities under Rule 5(B)(16). I recognize that those responsibilities do not independently establish unrestricted access to the entire file.

3. Attorney responses and investigative records

Please provide, to the extent disclosure to me as the grievant is authorized:

1. Each respondent attorney's response, supplemental response, supporting exhibits, and correspondence concerning the grievance.
2. Requests that I respond to the attorney's submissions, together with my replies.
3. Requests for information, documents, explanations, or interviews sent to the respondent attorney or other persons.
4. Documents, statements, interview records, and other evidence obtained during intake or investigation.

5. Intake summaries, investigative reports, factual summaries, analyses, recommendations, and other records documenting evaluation of the allegations.
6. Records identifying the allegations, evidence, and professional-conduct rules considered.
7. Records documenting whether an investigation was initiated, its scope, and any decision to decline, limit, discontinue, or close investigative activity.

MRLDE Rule 10(C)(1)(a) expressly contemplates lawyer responses, grievant replies, intake summaries, and investigative reports. I request disclosure of those materials to the extent authorized, not on the assumption that the rule makes every investigative document accessible to a grievant.

4. Required notices, dismissal explanations, and disposition records

For each matter, please provide:

1. Every notice concerning initiation of an investigation, dismissal, closure, referral, review, reopening, or other disposition.
2. The concise written statement of facts and reasons supporting any dismissal required by MRLDE Rule 5(B)(10).
3. The written dismissal notice stating the reasons for the action and advising of review rights required by MRLDE Rule 10(C)(2).
4. Any supplemental, amended, or corrected explanation of the disposition.
5. Any existing decision, order, recommendation, or other record establishing the disposition and its date.
6. Existing records showing when, how, and to what email or postal address each notice or explanation was sent, including available transmission records, delivery confirmations, returned mail, or email failure notices.

I have not received what I understand to be the required concise written statement of facts and reasons explaining the dismissal of my matter or matters. If ODC considers a previously issued document sufficient to satisfy that requirement, please identify that document, provide a copy, and identify when and how it was sent to me. If the required statement has not been provided, please provide it.

Please distinguish between the required substantive notices and the additional transmission or delivery records requested here; I am requesting existing delivery records, not asserting that the cited rules require ODC to create them.

5. Review Panel, Commission on Practice, and Supreme Court records

For each matter, please provide any records in ODC's custody concerning:

1. Requests for review, appeals, petitions, supplemental submissions, and accompanying exhibits.
2. Referral or submission to a Review Panel or the Commission on Practice.

3. Any existing inventory identifying the record submitted for review.
4. Disclosable materials constituting that record.
5. Review dispositions, orders, notices, and explanations communicated to ODC or to me.
6. Notices concerning the opportunity to request Montana Supreme Court review.
7. Transmittal letters, cover emails, referral memoranda, attachment lists, file inventories, and acknowledgments concerning records sent to or received from the Commission or Supreme Court.
8. Existing records identifying the transmission date, receiving office, associated proceeding or docket number, and materials included.
9. Subsequent requests for additional records, corrections, supplementation, or clarification, together with responsive transmissions.

MRLDE Rule 10(C)(3) provides for dismissal review upon the record before the Review Panel, and Rule 14(A) addresses notice of the opportunity for Supreme Court review. These provisions support my request to identify the procedural record and obtain the notices required to be provided to me; I do not assert that they independently require disclosure of every underlying document.

I am not requesting confidential Review Panel deliberations protected by MRLDE Rule 3(C). Please distinguish such deliberations from any notices, dispositions, inventories, transmittal documentation, or other materials that may lawfully be disclosed.

6. Communications and handling of my prior inquiries

Please provide all disclosable correspondence and existing administrative records concerning either grievance, including:

1. Emails, letters, attachments, memoranda, and other communications exchanged with me.
2. Existing records of telephone messages, voicemail, call notes, and written correspondence concerning my requests for information or records.
3. Existing records documenting receipt, routing, assignment, acknowledgment, response, or closure of those inquiries.
4. Disclosable communications between ODC, the Commission on Practice, and the Montana Supreme Court or its Clerk concerning either matter.
5. Records documenting any relationship between ODC File Nos. 25-147 and 26-145, including cross-references, shared materials, or decisions to consider them together or separately.

Please search the case-management files and other locations reasonably likely to contain responsive records, including relevant office email and electronic correspondence repositories.

7. Records held by another custodian

If ODC does not maintain some or all of the requested records, please, where appropriate and permitted, forward the relevant portion of this request to the office or custodian that maintains them.

Relevant custodial authorities include MRLDE Rule 2(G)(7), concerning the Commission's permanent disciplinary records, and § 3-2-402, MCA, which the Supreme Court Clerk identifies as the authority for custody of official Supreme Court records. These custodial responsibilities do not eliminate applicable confidentiality restrictions.

If you forward any portion of this request:

- Copy me on the forwarding email.
- Identify the receiving office or custodian and the categories forwarded.
- Provide the custodian's working email address and any associated reference number.

If forwarding is not appropriate or cannot be done, please provide sufficient information for me to submit the request directly, including:

- The custodian's name or title and office.
- A working email address for records requests.
- Any required electronic submission procedure or online request form.
- Relevant file, proceeding, or docket numbers.
- The categories of responsive records believed to be maintained there.

A telephone number or postal address alone will not meet my communication needs. Please provide a digital contact or electronic submission route. If none is available, please state that expressly by email and identify the available alternative.

I request forwarding or custodian assistance as a practical means of obtaining the records; I am not asserting that the cited custodial provisions impose a universal forwarding obligation.

8. Confidentiality, redactions, and unavailable records

I recognize that MRLDE Rule 20 and other applicable authorities may restrict disclosure. I am requesting records personally as the grievant, not seeking unrestricted public dissemination, and I understand that my status as grievant does not automatically remove confidentiality protections.

For any record or category withheld in whole or in part, please, to the extent permitted:

1. Identify the record or category sufficiently to explain what is withheld without revealing protected information.
2. Identify the specific rule, statute, order, privilege, or other authority supporting withholding.

3. Clarify whether the restriction prevents disclosure to me as grievant or concerns public disclosure only.
4. Provide portions that may lawfully be disclosed through redaction or separation.
5. Identify any procedure through which I may request authorization for access or review of the withholding decision.

Please distinguish between records that:

- Exist but are withheld.
- Were never created.
- Cannot be located after a search.
- Are no longer maintained.
- Have been transferred to another custodian.

If responsive records were destroyed or deleted, please provide any existing applicable retention schedule, destruction record, or transfer record, to the extent disclosable.

I request existing records rather than the creation of a new index or chronology. My requests for an explanation of withholding and assistance identifying custodians are intended to facilitate a clear response, not to presume that every requested processing step is independently mandated.

9. Electronic acknowledgment, format, timing, and fees

Please:

1. **Acknowledge receipt by email and confirm that this request is associated with both file numbers.**
2. **Identify the person or office handling it and provide a working email contact.**
3. **Provide an estimated production timeframe and identify any necessary clarification.**
4. **Deliver records by email attachment or a secure electronic download link sent by email.**
5. **Provide searchable PDFs where already available and native electronic files where reasonably practicable, retaining existing filenames, dates, and attachment relationships.**
6. **Identify the applicable file number for each production and indicate records concerning both matters.**
7. **Produce available records on a rolling basis if completing the request will take additional time.**
8. **Advise me by email before incurring fees, with an itemized estimate and the applicable basis. I do not authorize charges without my prior written agreement.**

For public information subject to § 2-6-1006, MCA, I request a timely response consistent with subsection (2), and documentation of any applicable fees consistent with subsection (1)(c). This request prioritizes electronic records in formats already maintained or reasonably available.

I expressly request email communication and electronic delivery of all responsive records because my previous telephone and paper-letter requests have gone unanswered, and those methods have not provided a reliable, verifiable record of receipt or follow-up. Email communication will help establish a documented record of this request, its acknowledgment, and any subsequent correspondence or production of records.

Please *do not* substitute a telephone call or postal response for the requested email acknowledgment and electronic production.

If a particular record cannot be transmitted electronically for a specific legal or security reason, explain that reason by email and identify a secure digital alternative.

This is my personal records request concerning the two identified grievances. It is not a new grievance and does not withdraw, replace, or waive any pending request for review or other position I have asserted.

Sincerely,

Elvis Nuno
Grievant — ODC File Nos. 25-147 and 26-145

Sent with Proton Mail secure email.

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706 bytes 1 file attached

[redacted] 706 bytes